

26TRCV00843 26TRCV00843

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Case Number: 26TRCV00843 Hearing Date: July 29, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

KARLA ZEPEDA

, et al.;

Plaintiffs,

vs.

TACK GROUP LLC

;

Defendant.

Case

No.:

26TRCV00843

Hearing

Date:

July
29, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT TACK GROUP LLC'S DEMURRER TO
PLAINTIFFS' COMPLAINT

(2)

DEFENDANT TACK GROUP LLC'S MOTION TO STRIKE
PORTIONS OF PLAINTIFFS' COMPLAINT

(3)

PLAINTIFFS' REQUEST FOR LEAVE TO AMEND

MOVING PARTY: Defendant, Tack Group LLC

RESPONDING PARTY: Plaintiffs, Karla Zepeda, as an
individual and Guardian ad Litem of April Chavez, April Chavez, a minor, and Cristhian
Chavez

(1)

Defendant

Tack Group LLC's Demurrer to Plaintiffs' Complaint is SUSTAINED with respect to
the third and ninth causes of action and OVERRULED with respect to the sixth
cause of action pursuant to Code of Civil Procedure section 430.10.

(2)

Defendant

Tack Group LLC's Motion to Strike Portions of Plaintiffs' Complaint is DENIED pursuant
to Code of Civil Procedure section 435.

(3)

Plaintiffs

are GRANTED twenty (20) days Leave to Amend.

The Court considers the moving papers filed on June 26, 2026, the opposition briefs filed on July 16, 2026, and the reply briefs filed on July 22, 2026.

BACKGROUND

Factual Background

On March 4, 2026, plaintiffs Karla Zepeda, as an individual and Guardian ad Litem of April Chavez, April Chavez, a minor, and Cristhian Chavez (collectively, "Plaintiffs") filed the Complaint against defendants Tack Group LLC ("Defendant") and DOES 1 through 20. The Complaint includes the following causes of action: (1) Breach of Warranty of Habitability (Violation of Civil Code § 1941.1); (2) Breach of Warranty of Habitability (Health & Safety Code § 17920.3); (3) Breach of Warranty of Habitability (Violation of Civil Code § 1942.4); (4) Negligence – Premises Liability/Failure to Warn/Negligence Per Se; (5) Nuisance; (6) Intentional Infliction of Emotional Distress; (7) Breach of Contract; (8) Unfair Business Practices (Violation of Business and Professions Code § 17200, et. seq.); and (9) Fraudulent Concealment.

On June 19, 2026, Defendant's counsel emailed Plaintiffs' counsel a meet-and-confer letter addressing the deficiencies outlined in the demurrer and motion to strike. (Declaration of Branden D. Frankel re: Demurrer ("Dem. Frankel Decl."), ¶ 3, Exh. A; Declaration of Branden D. Frankel re: Motion to Strike ("MTS Frankel Decl."), ¶ 3, Exh. A.) Plaintiffs' counsel did not agree to amend the Complaint to address the issues raised in the meet-and-confer letter, which led to the necessity for these pleadings. (Dem. Frankel Decl., ¶¶ 4-5; MTS Frankel Decl., ¶¶ 4-5.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a),

435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd.

(a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).)

A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On June 19, 2026, Defendant's counsel emailed Plaintiffs' counsel a meet-and-confer letter addressing the deficiencies outlined in the demurrer and motion to strike. (Dem. Frankel Decl., ¶ 3, Exh. A; MTS Frankel Decl., ¶ 3, Exh. A.) Plaintiffs' counsel did not agree to amend the Complaint to address the issues raised in the meet-and-confer letter, which led to the necessity for these pleadings. (Dem. Frankel Decl., ¶¶ 4-5; MTS Frankel Decl., ¶¶ 4-5.)

Although the parties did not engage in the meet-and-confer process as required, the Court will still consider the merits of the pleadings. An insufficient meet-and-confer process is not a valid reason to overrule or sustain a demurrer or to grant or deny a motion to strike.

DEMURRER

Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts

properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

"Notwithstanding any other law, in any action under this chapter in which the defendant demurs or moves to strike the complaint or any portion thereof, the hearing on the motion shall be not less than five court days nor more than seven court days after the filing of the notice of motion." (Code Civil Proc., § 1170, subd. (b)(1).)

Discussion

Third Cause of Action

Breach of Warranty of Habitability (Violation of Civil Code § 1942.4)

Defendant demurs to Plaintiffs' third cause of action for breach of warranty of habitability (Violation of Civil Code § 1942.4) on the grounds that (1) "Plaintiffs have pled no facts indicating any inspection by any public officer or employee responsible for enforcement of any housing law[.]" and (2) "Plaintiffs also have not pled any notice, let alone written notice conveying the specific information necessary to maintain a cause of action under section 1942.4." (Dem., p. 3:3-6.)

"A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if

all of the following conditions exist prior to the landlord's demand or notice: ¶ (1) The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling. ¶ (2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions. ¶ (3) The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail. ¶ (4) The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2." (Civ. Code, § 1942.4, subd. (a).)

The Court observes that Plaintiffs have not alleged that a public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of their obligations to abate the nuisance or repair the substandard conditions. The absence of allegations that Plaintiffs reported the alleged uninhabitable conditions to a public official or employee further underscores this lack of compliance. While Plaintiffs claim to have reported the conditions to "Ernesto" and "Leticia," these individuals are identified as management or managing agents of the property, rather than as public officers or employees. (Compl., ¶¶ 28, 92.)

Accordingly, Defendant's demurrer with respect to the third cause of action for breach of warranty of habitability (Violation of Civil Code § 1942.4) is SUSTAINED.

Sixth Cause of Action

Intentional Infliction of
Emotional Distress

Defendant demurs to Plaintiffs'

sixth cause of action for intentional infliction of emotional distress on the grounds that (1) Plaintiffs fail to allege conduct so extreme as to exceed all bounds of that usually tolerated in a civilized community, and (2) Plaintiffs fail to include facts that would demonstrate Defendant acted with the intent of causing, or reckless disregard of the probability of causing, emotional distress. (Dem., pp. 3:17-4:22.) The Court disagrees.

“A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. [Citations.] A defendant’s conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citation.] And the defendant’s conduct must be intended to inflict injury or engaged in with the realization that injury will result. [Citation.]” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051, internal citations and quotations omitted.)

“Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. ” [Citation.]” (McDaniel v. Gile (1991) 230 Cal.App.3d 363, 372, internal citation omitted.) “A person acts with conscious disregard of the rights or safety of others when [he] [she] is aware of the probable dangerous consequences of [his] [her] conduct and willfully and deliberately fails to avoid those consequences. [Citation.]” (Poetter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 998, internal citation and quotations omitted.)

Plaintiffs assert that the following actions constitute extreme and outrageous conduct: “Sometime on or around February 2021 and continued to December 2025, Plaintiffs noticed bedbugs in their home and immediately notified management and/or their managing agents, specifically ‘Ernesto’ and ‘Leticia’ of the bed bug infestation in Plaintiffs’ Unit. Defendants and their agents and managers

failed to remediate the uninhabitable conditions (specifically, bed bug infestations), at the Subject Property and Plaintiffs' Unit." (Compl., ¶ 142.) "Defendants were aware of the dangerous bed bug infestations, which existed at the Subject Property and Subject Unit, and knowingly, intentionally and willfully fail to abate the bed bug infestations so that the problems have persisted for an extended period. In fact, when Plaintiffs notified Defendants of the bed bug infestations, Defendants knowingly, intentionally and willfully failed to abate the uninhabitable conditions (bed bug infestations), maintaining a company policy of apathy and/or denial. As such Plaintiffs were forced to live in uninhabitable conditions (bed bug infestations) for an extended period as a result of Defendants' incessant failure to abide by their statutory duties to abate known uninhabitable conditions." (Compl., ¶ 145.)

The Court finds that the allegations presented are adequate to establish both outrageous conduct and a reckless disregard of the probability of causing emotional distress. Plaintiffs assert that Defendant was aware for more than five years, prior to the initiation of this Complaint, that they were experiencing a bed bug infestation. Furthermore, Plaintiffs claim that Defendant took no action to remedy the situation during this extended period. A jury may reasonably conclude that such conduct is exceptionally egregious and exceeds the standards typically accepted within a civilized community, particularly given Defendant's failure to act despite knowledge that a prolonged infestation could result in extreme emotional distress for Plaintiffs.

Accordingly, Defendant's demurrer with respect to the sixth cause of action for intentional infliction of emotional distress is OVERRULED.

Ninth Cause of Action

Fraudulent Concealment

Defendant demurs to Plaintiffs' ninth cause of action for fraudulent concealment on the grounds that (1) Plaintiffs have not clearly identified any alleged misrepresentation or concealment of facts; (2) Plaintiffs fail to meet the heightened specificity requirement; and (3) Plaintiffs' timeline is contradictory. (Dem, pp. 4:23-6:1.)

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false

representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 (Lazar), quoting 5 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 676, p. 778.)

"To maintain a cause of action for fraud through nondisclosure or concealment of facts, there must be allegations demonstrating that the defendant was under a legal duty to disclose those facts. [Citation.] There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.] [Citation.] Where ... there is no fiduciary relationship, the duty to disclose generally presupposes a relationship grounded in some sort of transaction between the parties. [Citations.] Thus, a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] [Citation.] [Citation.]" (Los Angeles Memorial Coliseum Com. v. Insomniac, Inc. (2015) 233 Cal.App.4th 803, 831, internal citations and quotations omitted.)

The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked. (Lazar, supra, 12 Cal.4th at p. 645.) In alleging a cause of action for fraud, "[t]he specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made." (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 793.) However, the Court notes that "the rule is relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts." (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 29.)

Plaintiffs allege the

following: "Sometime on or around July 2020, Plaintiffs entered into a standard

Rental Agreement (hereinafter 'Rental Agreement') for the Subject Property." (Compl., ¶ 27.) "Prior to sometimes on or around February

2021 and continued to December 2025, Defendants knew of widespread bed bug

infestations at the Subject Property and Plaintiffs' Unit. However, Defendants intentionally withheld this information from Plaintiffs."

(Compl., ¶ 169.) "Plaintiffs

justifiably relied upon Defendants' misrepresentations and/or fraudulent

representations that Plaintiffs' Unit and Subject Property were habitable and

free of bedbugs." (Compl., ¶ 171.) "Defendants' managing agents, specifically 'Ernesto'

and 'Leticia' authorized and/or ratified all offensive acts outlined in this

cause of action, as well as all of the other causes of action included

throughout the Complaint." (Compl., ¶ 172.)

Defendant contends that "the

timeline of Plaintiffs' tenancy renders this allegation nonsensical. Plaintiffs allege their tenancy commenced in

July 2020. Somehow, six months later,

Defendant concealed the existence of bedbugs in a unit Plaintiffs had already

occupied for half a year. The facts pled

indicate very strongly that there was no bedbug issue to conceal prior to

Plaintiffs' moving into the unit and that, if anything, Defendant became aware

of the issue after Plaintiffs' notified Defendant. " (Dem.,

p. 5:20-25.) The Court does not concur

with this interpretation.

Although Plaintiffs assert

that they moved into the subject unit in July 2020 and allege that Defendant

concealed the infestation six months later, it is possible that a bedbug

infestation occurred in other units on the property prior to Plaintiffs'

occupancy or during the initial six months of their tenancy, subsequently

spreading to Plaintiffs' unit. Thus,

Plaintiffs' timeline is plausible.

Nevertheless, such allegations

do not satisfy the heightened pleading standard. Plaintiffs' own assertions indicate that Defendant

made affirmative misrepresentations regarding the habitability of Plaintiffs'

unit and the condition of the property with respect to a bedbug infestation. Furthermore, they claim that Defendant was

aware that these statements were false but did not disclose knowledge of the

infestation. Plaintiffs failed to include any information about how, when, where, and by what means these affirmative representations were made, and, in the case of a corporate defendant, the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made. Given the current state of the Complaint, the Court is unable to waive the heightened pleading standard because it is not apparent from the allegations that Defendant necessarily possesses knowledge of the facts. Plaintiffs provide minimal information for the Court and Defendant to assess how, when, where, and by what means these affirmative representations were made.

Accordingly, Defendant's demurrer with respect to the ninth cause of action for fraudulent concealment is SUSTAINED.

MOTION TO STRIKE

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b), emphasis added.) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

Defendant seeks to strike the following: (1) references to punitive damages contained in paragraphs 1, 40, 41, 80, 81, 83, 87, 115, 130, 131, 141, 143, 144, 146, 148, 155, 171, 173, and 180; (2) claims for statutory damages arising from Plaintiffs' third cause of action for breach of warranty of habitability (Violation of Civil Code § 1942.4); (3) requests for restitution; and (4) requests for attorneys' fees. (Notice of MTS, pp. 2:1-4:17; MTS, pp. 5:25-6:6.) However, the Court notes that Defendant's request to strike statutory damages is rendered MOOT due to the sustainment of the demurrer pertaining to the third cause of action. Moreover, the Court notes that Defendant has not provided a legal analysis concerning restitution or attorneys' fees. Consequently, the Court will focus solely on the argument related to punitive damages.

Punitive Damages

Defendant contends that Plaintiffs have not presented sufficient factual allegations to demonstrate malice, oppression, or fraud. (MTS, pp. 3:21-5:24.) However, the Court finds this position unconvincing and concludes that the allegations provided are adequate to support claims of malice or oppression.

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) A motion to strike punitive damages is properly granted when a plaintiff does not state a prima facie claim for punitive damages. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.)

"Malice" is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) "Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." [Citation.] (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210.)

"As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an

intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (Ibid.) Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as 'having the character of outrage frequently associated with crime.'" (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) Further, "[t]here must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff's interests and deliberately failed to avoid these consequences." (Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

"Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).)

"Fraud" means "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

As discussed, Plaintiffs contend the following: "Sometime on or around February 2021 and continued to December 2025, Plaintiffs noticed bedbugs in their home and immediately notified management and/or their managing agents, specifically "Ernesto" and "Leticia" of the bed bug infestation in Plaintiffs' Unit. Defendants and their agents and managers failed to remediate the uninhabitable conditions (specifically, bed bug infestations), at the Subject Property and Plaintiffs' Unit." (Compl., ¶ 142.) "Defendants were aware of the dangerous bed bug infestations, which existed at the Subject Property and Subject Unit, and knowingly, intentionally and willfully fail to abate the bed bug infestations so that the problems have persisted for an extended period. In fact, when Plaintiffs notified Defendants of the bed bug infestations, Defendants knowingly, intentionally and willfully failed to abate the uninhabitable conditions (bed bug infestations), maintaining a company policy of apathy and/or denial. As such Plaintiffs were forced to live in uninhabitable conditions (bed bug infestations) for an extended period as a result of Defendants' incessant

failure to abide by their statutory duties to abate known uninhabitable conditions." (Compl., ¶ 145.)

The Court determines that these allegations are sufficient to substantiate claims of malice or oppression. The long-standing inaction by Defendant, following its awareness of the infestation, may be perceived as conduct that is despicable and executed with a willful or conscious disregard for Plaintiffs' right to reside in a habitable unit, thereby subjecting them to cruel and unjust hardship. Accordingly, the Defendant's motion to strike is DENIED.

ORDERS

1) Defendant

Tack Group LLC's Demurrer to Plaintiffs' Complaint is SUSTAINED with respect to the third and ninth causes of action and OVERRULED with respect to the sixth cause of action.

2) Defendant

Tack Group LLC's Motion to Strike Portions of Plaintiffs' Complaint is DENIED pursuant to Code of Civil Procedure section 435.

3) Defendant

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 29, 2026

Tamara
Hall

Judge
of the Superior Court